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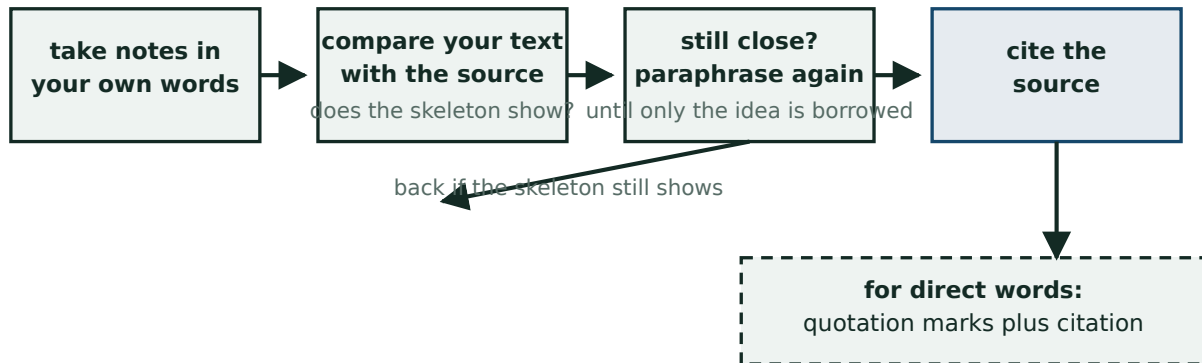
# Topic 5.3 - Intellectual property and avoiding plagiarism

## A real classroom situation

A trainee teacher in Hyderabad prepares a brilliant worksheet: two diagrams copied from a website, a story lifted word-for-word from a teacher's blog, a comprehension passage pasted from a newspaper - and, at the bottom, her own name as the author. Her supervisor's note is gentle but precise: "Excellent activity. Three people made it." The trainee is not a thief in any ordinary sense; she did what she had seen done all her student life. But she has broken two different rules at once - the law's rule about whose work it is, and the academy's rule about whose words she is presenting as her own. This topic separates those two rules and teaches the habits that satisfy both.

### The safe-assignment workflow

Four steps from reading a source to an honest summary



The test: a reader can tell, at every sentence, which words and ideas are yours and which are borrowed.

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## Explanation

### Intellectual property rights

Intellectual property is, in the definition Bourgeois and colleagues (2019) quote, "property (as an idea, invention, or process) that derives from the work of the mind or intellect". Ideas themselves are hard to protect; the law protects their tangible results, through three main instruments.

Copyright is "the protection given to songs, computer programs, books, and other creative works" (Bourgeois et al., 2019). It arrives automatically: the moment a work is created, its author holds the copyright, registration or notice not required (though registration is needed to sue in some jurisdictions). Copyright lasts a long time - in the United States, the author's life plus seventy years

- after which the work enters the public domain: "When something is in the public domain, it has absolutely no restrictions on its use or distribution" (Bourgeois et al., 2019). A patent protects an invention for about twenty years, and a trademark

- a word, logo or sound identifying the source of goods - does not expire while it is used and defended.

The teacher's lifeline within copyright is fair use: "a limitation on copyright law that allows for the use of protected works without prior authorization" in specific cases, classroom distribution among them (Bourgeois et al., 2019). The four factors that weigh a fair use are the purpose (educational weighs in your favour), the nature of the copied work, how much of it you take, and the effect on its market value. A teacher copying one poem for a class discussion stands well; a teacher photocopying an entire textbook does not. Between full copyright and the public domain sit the Creative Commons licences, under which creators permit reuse in advance on stated conditions (this textbook's own sources include such works) - always read the conditions.

The World Intellectual Property Organization (WIPO) frames the purpose behind all of this: IP protection aims to balance innovators' interests with the public interest, so that creativity is both rewarded and eventually shared (WIPO, n.d.). A teacher lives that balance daily - using others' work to teach, and teaching pupils to make work of their own.

## Avoiding plagiarism

Plagiarism is presenting someone else's words, ideas or work as your own. It is not the same as copyright infringement: copying one paragraph for a school essay may be plagiarism without breaking any law, and copying may break the law while being fully credited. Plagiarism is the academy's rule - the rule about honesty in what you claim as yours.

The common misconception is that plagiarism is only copying whole paragraphs word for word. Its forms are wider: copying with small changes (swapping synonyms is still plagiarism if the structure and ideas are another's); paraphrasing someone's idea without crediting it; using an image or diagram without its source; and self-plagiarism, resubmitting your own earlier work as new. Purdue University's writing lab, whose guidance on avoiding plagiarism is the standard student reference, frames the honest path as a two-part habit: make it clear what is borrowed, and make it clear from where (Purdue OWL, n.d.).

### Using sources: five verdicts

| What you did                                                        | Verdict                | Why                                                  |
|---------------------------------------------------------------------|------------------------|------------------------------------------------------|
| copied a paragraph word for word, with citation and quotation marks | <b>fine</b>            | the words are clearly borrowed and sourced           |
| copied a paragraph changing some words, no citation                 | <b>plagiarism</b>      | the structure and ideas are another's                |
| paraphrased an idea fully in your own words, with citation          | <b>fine</b>            | the idea is credited even though the words are yours |
| used a diagram from a website with no source line                   | <b>plagiarism</b>      | images are work too                                  |
| resubmitted your own last year's essay as new work                  | <b>self-plagiarism</b> | presenting old work as new is dishonest              |

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The safe-assignment workflow in the figure turns the habit into steps. **Take notes in your own words** - not copy-paste, which embeds another's sentences in your memory. **Compare** your text with the source; if the skeleton still shows, paraphrase again until only the idea - not its wording - is borrowed. **Cite the source**, every time, even for ideas you have fully re-expressed; and for words you keep, add quotation marks plus the citation. The test is simple: a reader should be able to tell, at every sentence, which words and ideas are yours and which are borrowed, and from where.

Why does this matter for a teacher, beyond personal honesty? Because plagiarism has become easy - a survey of 485 university students across two countries found that easy access to information-communication technologies and the web is now the main reason students plagiarise, outranking personal factors (Jereb et al., 2018) - and the pupils you teach will copy what they watch you do. The teacher who models citation in every worksheet is teaching a habit no lecture can teach.

## Activity: The two-column workshop

Work in pairs. About 20 minutes.

1. Your teacher gives each pair a short source paragraph (about 80 words) on, say, the water cycle or Allama Iqbal's educational philosophy.
2. Partner A produces a "careless summary": copy the paragraph, change four words, remove nothing else. Partner B produces an honest one: notes in own words, then a short summary with a citation line.
3. Swap papers. Each partner marks the other's work with the five cases from the second figure: which cases does it match, and what is the verdict?
4. Together, write the citation line the summary needed, and one sentence stating what makes the honest version honest.

## Check your understanding

1. Define intellectual property and copyright in one sentence each.  
*(Remember)*
2. Explain the difference between plagiarism and copyright infringement with one example. *(Understand)*
3. A teacher copies one poem into a class worksheet with the poet's name, and another photocopies a whole workbook for the class. Using the fair-use factors, judge each case. *(Apply)*
4. List the four steps of the safe-assignment workflow. *(Remember)*

## Summary

Intellectual property is the work of the mind made protectable: copyright covers created works automatically and long-term, patents cover inventions briefly, trademarks cover identifiers while used; fair use permits educational borrowing within weighed limits, and the public domain and Creative Commons licences open free ground between. Plagiarism is the separate, academic wrong: presenting another's words or ideas as your own, in forms wider than word-for-word copying. The safe-assignment workflow - own words, compare, paraphrase again, cite (quote and cite for kept words) - and the visible-borrowing test make honesty a habit rather than a gamble.

# Self-assessment checklist

Sign in to sync your ticks across devices.

- ☐ I can define copyright, patent, trademark, fair use and public domain.
- ☐ I can judge a described use of someone's work as fair, infringing, or plagiarism.
- ☐ I can apply the safe-assignment workflow to a real summary task.

## Try this at your practicum school

Take one worksheet used in your practicum class. Audit it: which items are the teacher's own, which are borrowed, and which borrowed items carry their source? Write one sentence: what you would add before using it yourself.

## Summative task

Analyse a real plagiarism case from a Pakistani university or school reported in the news (your teacher can supply one), or a constructed case with the same shape. In one page: what exactly was plagiarised and in which form, which rules were broken (academic, legal, or both), what the institution did, and what one habit would have prevented it.

### Marking guide (10 marks):

- The case's facts summarised accurately and neutrally: 2 marks.
- The form of plagiarism identified from this topic's list, not just "copying" (Analyse): 4 marks.
- The rules broken distinguished (academic versus legal): 2 marks.
- The preventive habit is concrete and drawn from the workflow: 2 marks.

## Further reading

- Bourgeois, D. T., Smith, J. L., Wang, S., & Mortati, J. (2019). *Information Systems for Business and Beyond* (2nd ed.), chapter 12. Open Textbook

Library. <https://open.umn.edu/opentextbooks/textbooks/information-systems-for-business-and-beyond>

- Purdue University Online Writing Lab. *Avoiding Plagiarism*.  
[https://owl.purdue.edu/owl/avoiding\\_plagiarism/index.html](https://owl.purdue.edu/owl/avoiding_plagiarism/index.html)
- World Intellectual Property Organization. *What is Intellectual Property?*  
<https://www.wipo.int/about-ip/en/>
- Jereb, E., Perc, M., Lämmlein, B., Jerebic, J., Urh, M., Podbregar, I., & Šprajc, P. (2018). Factors influencing plagiarism in higher education: A comparison of German and Slovene students. *PLoS ONE*, 13(8), e0202252.  
<https://doi.org/10.1371/journal.pone.0202252>

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